

International Women's Day

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Illustration: The Fourth World Conference on Women, held in Beijing, China from 4-15 September 1995

The way ahead for equality between men and women in Bangladesh

Challenging Violence

by Hameeda Hossain

BDANGLADESH has yet to deal with the frequency and brutal nature of violence against women. The tendency to dismiss it merely as media hype is disproved by the increasing number of women who file complaints. Not all of these can be ascribed to false cases. The most commonly reported forms of violence against women are domestic violence, rape and acid burns. Different forms of violence can be related to dowry demands.

Research indicates that violence against women has escalated during the last three years (see Box). It may be the result of lawlessness or impunity of perpetrators. But this is not a reason in itself for gender violence. Investigations and monitoring by human rights and women's rights organisations suggest that violence against women is the symptom of gendered power and control. For example, acid burns are used as a mark of vengeance or possessiveness by rejected suitors. Of the 1425 rape cases in 1998, 44.5% were gang rapes, and individual members of the law enforcing agencies (police or military) were accused in 1.6% of the reported incidents. In both, impunity of office or political influence encouraged such acts. In cases of domestic or dowry related violence, the relationship of power between the man and woman is licensed by a customary acceptance of gender discrimination and tolerance of violence.

Violence against women prevails across different locations, including the domestic and public sphere, at the workplace, by the community and the state, across different age cycles and religious or ethnic groups. Domestic violence is more pervasive but it is ignored because of family privacy or community norms. Women's entry into the public sphere, particularly as a result of urbanization, has provoked different forms of violence.

Women's access to redress has been limited within the informal legal system to traditional forms of dispute resolution such as *shalish* or to the formal court system. Both systems have been less than woman-friendly.

The community *shalish* is a pre-

ferred site for mediation of family disputes, but it is dominated by male, conservative leaders or persons of influence who prefer solutions that maintain social harmony, community hierarchies or save face rather than uphold individual rights. An important factor is the balance of power between the two disputing parties and the influence of the mediators to impose their decisions. In some cases the *shalish* uphold traditional and conservative interpretations (or misinterpretations) of religious law or custom that often discriminate against women and subject them to oppressive relations within their family and in particular, within marriage.

Form of violence	1996	1997	Increase 96-97	1998	Increase
Dowry Related	77	177	56%	239	25%
Rape	262	753	65%	1425	47%
Domestic violence	55	234	76%	273	14%
Acid Burns	27	130	79%	138	6%

Source: Human Rights in Bangladesh 1998, Ain o Salish Kendra

In the adversarial system of the courts, women find themselves at a disadvantage. The burden of proof in rape cases is thrust upon the victim, and procedures for collecting such proof are humiliating and insensitive. Complaints of domestic violence are often dismissed by the police as personal matters, which is why such cases are sometimes filed under the Dowry Prevention Act. Complaints against the police or other law enforcement agencies often boomerang on the complainants themselves.

Women activists, legal aid organisations and lawyers are advocating reform of laws and procedures. Laws have been amended but each time with a

for women complainants to be present themselves.

State responses and the formal court system in Bangladesh have not provided viable alternatives either. The trials into the death of Yasmin in 1995 and Shima in 1997 demonstrated the weaknesses of the procedures for investigation and filing of charges. In the first case four policemen were convicted. In both cases, appeals remain pending. In the second case four officers charged with rape were honourably acquitted for lack of sufficient evidence. The judge could have ordered a re-investigation but did not and Shima's death in jail custody remains as a testimony to the threat to women's lives even from state functionaries.

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Physical and emotional violence: husband assaults wife with impunity in full view of onlookers in Chittagong. Photo: Tapas Barua, for Unicef Bangladesh

cosmetic effect that has enhanced punishment, rather than made a change in substance or fundamental approach. The application of these laws has proved ineffective because of the ambiguities within the text and inappropriate or cumbersome legal procedures.

The latest Act passed in January 2000, titled "Repression against Women and Children" took three years to redraft, because of women's protests, and yet it has omitted some of their serious concerns. Its history reveals that legislation continues to be an exclusive exercise, frequently ignoring the concerns of those likely to be affected. In March 1998, when the press published the Cabinet's approval of the Bill, women's groups across the country protested against the provisions relating to terrorism, as well as a few other provisions. After considerable lobbying, women's representatives met the Law Minister and the Prime Minister. At a conference on the Bill, in which some 43 women's organisations drafted recommendations for amendments, the President echoed women's concerns by saying that it was not changes in laws but in

procedures that would make it simpler to process complaints. The Act as enacted has taken on some recommendations, but discarded others leaving inconsistencies which may lead to violations of fundamental freedoms. It is a positive sign that offences of sexual assault and sexual harassment have been included. But on the question of 'safe custody' the Act has moved two steps back and deprived the woman of the right to choose. It authorises the tribunal to decide on keeping a woman victim in a protective shelter, (not necessarily a jail) with or without her consent. This provision quite clearly violates her fundamental freedom of movement and may lead to further victimisation. Given the instances of violence, such as rape by police officials in the last few years, women's organisations had recommended that no government permission be required before filing complaints, but this has not been included in the new law.

The disparity between women's demands and actual enactments shows a lack of sensitivity to women's experiences. Legislators tend to decide what is

good for others, and opt for populist gestures rather than substantial change. Harsh punishments do not lead to conviction, and the legal procedures themselves become a deterrent to justice. The way ahead for women and others concerned with the state of violence is therefore to continue to press for their voices to be recognised in structural or institutional changes, so that existing defects in the laws can be corrected. In addition it is important to monitor the proceedings from the police to court trials. At each stage patriarchal assumptions will need to be challenged to ensure social justice. Judges and police must be made to understand that there can be no justification for violence; that rape cannot be overlooked as "uncontrollable lust" or "male weakness" when it is precisely an act of violence against women, just as murder is a crime against an individual. This calls for stronger activism and greater solidarity with the survivor willing to fight her case. □

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Good news, bad news:

Women in the garment industry in Bangladesh

Nearly a million women work in the garment industry, making it the largest single employer of females outside the home in Bangladesh. Women have found increased wage earning opportunities here, but at a price.

GOOD NEWS

- Female garment workers have the opportunity to remain single and delay child-bearing. In one study, 69% of a study sample and 74% percent in the 15-19 age group were unmarried.
- Although female workers are more likely than male workers to give their earnings to their families, by becoming wage earners they have some degree of autonomy and independence.
- Female workers gain experience in 'non-traditional' interactions with men, e.g. negotiating contracts and wages, which establish positive pat-

terns for their future lives.

BAD NEWS

- The NGO Nari Uddug Kendra, supported by CIDA has set up hostels for female workers and offered evening classes to teach them to read, write and learn about their rights.
- Female workers typically work 11-13 hours a day, seven days a week, while also bearing the greatest burden for household chores and child rearing.
- Workers have to find their own housing which is scarce and sometimes insecure.
- Women often do not have access to basic utilities such as toilets.
- Travel to and from factories is dangerous and many women are harassed, assaulted and raped.
- Women earn less than men, occupy less senior jobs, yet

more women work 12-13 hours a day, and do more overtime than men.

- Female workers suffer from increased health problems such as lethargy, weakness, ulcers, chest and back pain, fever and menstrual problems.
- Compared to men, women workers' health problems are much higher.

Solutions:

- Persuade employers to provide better and safer working conditions for workers.
- Make workers aware of their options.
- Encourage workers to become aware of their own health and adopt better lifestyle habits.
- Initiate regular dialogue between employers and workers.

Source: Nari Uddug Kendra.

Importance of women in local government



There are more than 12,000 women Union Parishad (UP) members in Bangladesh. They were elected to reserved seats in 1997. In addition, there are 110

women members and 20 female chairpersons who won general seats at these elections.

By electing women to local government, Bangladesh has taken a major step forward for women's political empowerment at the grassroots level. We must strengthen these gains by supporting women UP members in different ways.

At a conference organised by the Government of Bangladesh in 1999 and attended by some 375 women UP members, several problems were identified and solutions recommended.

UP members and chairpersons reported that they were largely excluded from the UP decision-making process, left out of development work allocations, ignored by their colleagues and superiors in terms of their work achievements and problems. There were also some instances of gender discrimination and sexual harassment.

The solutions recommended by them were to:

- Encourage local government to take stern action against acts of discrimination against women.
- Ensure equal distribution of work between male and female members.
- Amend local government legal procedures to clearly state women members' role and responsibilities.
- Make it mandatory for women members to be actively involved in UP's decision making process.

Women UP members need greater recognition from both individuals and the community. By supporting and respecting the value of women UP members, we will take another step forward in achieving equality between men and women in Bangladesh.

Source: Report on Problems and Expectations of UP Representatives, Policy Leadership & Advocacy Unit, Dhaka

The birth of International Women's Day: In Bangladesh

International Women's day is the story of ordinary women as makers of history. It is rooted in the centuries-old struggle of women to participate in society on an equal footing with men. The idea of an International Women's Day first arose at the turn of the century, which in the industrialised world was a period of expansion and turbulence, booming population growth and radical ideologies.

1909: In accordance with a declaration by the socialist Party of America, the first National Women's Day was observed across the United States on 28 February.

1910: The Socialist International, meeting in Copenhagen, established a Women's Day, international in character, to honour the movement for women's rights and to assist in achieving universal suffrage for women.

1911: As a result of the decision taken at Copenhagen the previous

year, International Women's day was marked for the first time in Austria, Denmark, Germany and Switzerland, where more than one million women and men attended rallies.

1913-1914: As part of the peace movement brewing on the eve of World War 1, Russian women observed their first International Women's day on the last Sunday in February 1913. Elsewhere in Europe, on or around 8 March of the following year, women held rallies either to protest the war or to express solidarity with their sisters.

1917: With 2 million Russian soldiers dead in the war, Russian women again chose the last Sunday in February to strike for "bread and peace". Since those early years, International Women's Day has assumed a new global dimension for women in developed and developing countries alike.

Source: www.un.org

1970: Eminent social activist and feminist, Begum

Sufia Kamal of Bangladesh attends International Women's Day in the Soviet Union.

1973: First International Women's Day is held at the initiative of the Mahila Parishad. Leading newspapers publish articles on women's issues and rights.

1974: Onwards, 8 March is proudly observed in Bangladesh every year.

Source: "Women of the Whole World", January 1990 issue

Did you know that?

Illustration: Unicef, Bangladesh



RAPE

What is rape?

- Any kind of sexual relations with a girl without her consent is considered to be rape and with a girl under the age of 16 (even with her consent) is also considered to be rape.
- Women are sexually violated not only on the streets and in lonely areas but also within their home.
- Appearances deceive - rapists do not belong to one social class. There are many rapists who are well-educated and established members of society.
- Rape does not take place only in the middle of the night - it can occur at any time of the day.
- Rapists don't only attack women in the 18-30 age group. All women are vulnerable. Rapists attack even 2 year old children or 50 year old women.

How do you deal with rape?

What to do:

- Inform a trustworthy person that you have been raped immediately after the incident.
- Remember, the person you talk to, or a witness to the rape will be needed in the case filed against the rapist.
- File a case against the rapist as soon as possible by going to your local thana.
- Continue your efforts to seek justice and try to get on with your life as normally as you can.
- What not to do:
- Do not have a bath after the rape because bodily evidence remains for 72 hours; get a check-up from the doctor and then have a bath.
- Do not forget to send your clothes to the police for investigation. Use a paper bag. Don't put the clothes in a plastic bag as this tends to blur the evidence to a major extent.

Appeal

- If the magistrate's court grants bail to the rapist, the victim can appeal to the higher court for justice.

Source: Handbook on Rape, Published by Ain o Salish Kendra, New 1999

DOWRY

What is dowry?

According to the Dowry Act of 1980 any kind of money agreement between a bride and bridegroom in connection with the occasion of a wedding will be considered as dowry.

Any party who asks for dowry (directly or indirectly) can be sentenced from one to five years in jail and fined Tk. 5000. The death penalty can be given for a dowry-related attack that causes severe injury to the victim.

To File a Case

- The law requires you file a complaint with the police about any violence related to dowry.
- Every district has a first class magistrate. You must file a case against the dowry-attacker(s) with the magistrate as soon as possible.

Source: Ganjan, December 1998, a Naripokkho Network Publication

ACID ATTACKS

What happens when acid is thrown on a person?

When acid is thrown on a person, the results are horrific. Nitric or sulphuric acid has a catastrophic effect on the human flesh. It causes the skin tissue to melt, often exposing the bones below the flesh, sometimes even dissolving the bone. When acid attacks the eyes, it damages these vital organs permanently. Many acid attack survivors have lost the use of one or both eyes. The victim is traumatised physically, psychologically and socially.

In 1996 there were 47 reported cases of acid violence in Bangladesh. In 1997 the number rose to 130. In 1998, there were over 200 reported cases. It is highly likely that the number of actual cases is considerably higher.

What to do in case of an acid attack?

- Wash the acid with water immediately! Don't hesitate, because the more water you use to wash the acid off, the less damage there is likely to be!
- Take the acid survivor to the nearest hospital as soon as possible.
- There is only one burn-unit at the Dhaka Medical College Hospital. Try to bring the survivor to the burn-unit as soon as possible.
- Acid throwing is a major and punishable crime. Make sure that a case is filed in the thana.

Source: Acid Survivors Foundation, Bangladesh & Naripokkho

MOTHERHOOD

- Three women die every hour in Bangladesh from causes or complications related to pregnancy and childbirth.
- These women come from all socio-economic backgrounds, and are of all ages.
- They can be saved with emergency obstetric care but only one out of 20 women manage to reach a facility in time.
- These complications can happen without warning and can strike any woman at any time.

How can we prevent maternal deaths?

- A woman with any or all of these danger signs needs emergency care: 1. Bleeding 2. Severe headaches and vomiting 3. High fever 4. If labour continues for more than 12 hours 5. Convulsions
- Obstetric care should be available at every level of the system and medical services of all kinds should have a woman-friendly atmosphere so that women feel confident using them.
- Spread the message that emergency obstetric care can save a woman's life, that a pregnant woman is entitled to special care from her family as well as from the health services.
- Make sure women know where they can find emergency care.
- When care is available, chances are high that a woman will survive complications.
- Remember: the support of individuals to all initiatives to improve the delivery of emergency care can make a difference. Recognition of a woman's entitlement requires actions by each individual.
- Act Now!

Source: Safe Motherhood Information Kit, Ministry of Health and Family Welfare, Government of Bangladesh, Supported by Unicef, Bangladesh